Indian Constitution – Units 1 & 2

Notes, MCQ Question Bank, Answer Key and Revision Guide · Amrita Vishwa Vidyapeetham, Chennai · Exam: 50 MCQs, 100 marks, pass mark 40

0. Read This First

How to use this guide: (1) Read Part 1 and Part 2 notes. (2) Attempt Part 3 questions *without* looking at answers. (3) Check Part 5 (Answer Key, last section) and read every explanation for the ones you got wrong. (4) Use Part 4 for last-day revision.

Tags used: [Slides] = taken from the professor's PPT. **[Ext]** = added or corrected from the Constitution of India / Citizenship Act 1955 (my own knowledge of the text; please spot-check at indiacode.nic.in or legislative.gov.in).

Important note on your sources:

- The uploaded "constitution_of_India.pdf" is **not** the Constitution's text. It is a 66-page export of the same course slides (it has the same slides as the PPTX). So the slides were my only uploaded source; article numbers and legal details were added from the Constitution itself and flagged **[Ext]**.
- The slides on President, Vice-President, Prime Minister, Council of Ministers, Parliament and State Government are **outside** Units 1–2 as you listed them, so they are not covered here. Tell me if they belong to Unit 3 and I will add them.

Discrepancies and cautions in the slides

#	What the slides say	Issue / correction
1	Typos: "Consitution", "Characterestics", "itsjurisdiction"	Spelling only.
2	"Time to draft: 2 years, 11 months, 17 days"	Most textbooks (NCERT) say **2 years, 11 months, 18 days** (9 Dec 1946 – 26 Nov 1949). Both appear; 17 is exclusive counting, 18 inclusive. Learn "about 2 years 11 months".

#	What the slides say	Issue / correction
3	"Over 440 articles, 25 parts, 12 schedules"	Safe. Roughly 448 articles in 25 parts and 12 schedules (the number of articles is not fixed because of inserted articles like 21A, 51A). Amended 100+ times (106th Amendment, 2023, is the one I am sure of; check India Code for later ones).
4	Preamble: Socialism, Secularism listed as core ideals	True today, but they were **added by the 42nd Amendment (1976)**, along with "Integrity". The slides omit this; it is a frequent MCQ.
5	Republic: "head of state is elected by the people"	Better: head of state is **not hereditary**; the President is elected **indirectly** (Electoral College).
6	Cultural & Educational Rights "protect minorities"	Art 29(1) protects **any section of citizens** with a distinct language, script or culture, not only minorities. Art 30 is the minorities' article.
7	Quiz: "Citizens can approach courts when FRs violated"	Many FRs belong to **all persons**, not only citizens (e.g. Art 14, 21).
8	Fundamental Duties: 11 listed	Correct. Originally **10** (42nd Amendment, 1976); the 11th (education, Art 51A(k)) was added by the **86th Amendment (2002)**.
9	Citizenship "By Birth" rule	Slides are vague. The law has **three time periods** (see Unit 2 notes).
10	Constitution "came into force 26 Jan 1950"	True for most provisions, but some (citizenship, elections, provisional Parliament, etc.) took effect **on 26 Nov 1949** (Art 394).

PART 1 — UNIT 1 NOTES

1.1 Introduction to the Constitution

- **Constitution** = the supreme law of the land. It (a) sets up the structure of government, (b) defines the powers of its institutions, (c) guarantees rights, and (d) lists duties of citizens. **[Slides]**
- Described as a **"living document"**: it can be amended (Art 368) and reinterpreted by courts as society changes. **[Slides/Ext]**
- **Longest written constitution** in the world. **[Slides]**

	Original (1950)	Today
Articles	395	~448 ("over 440")
Parts	22	25
Schedules	8	12

- **Memory trick:** *"395-22-8"* → "3-9-5, two-two, eight" (original); today *"448-25-12"*.
- Original Constitution was **handwritten** (calligrapher: Prem Behari Narain Raizada; artwork by Nandalal Bose and Santiniketan artists). **[Ext]**

1.2 Historical Background

Core idea [Slides]: Nearly two centuries of British rule → Indians demanded self-government, representation and political rights → the freedom movement shaped ideas of **democracy, justice, equality, liberty, social reform and rights of citizens**.

Key milestones before 1946 [Ext]

Year	Event	Why it matters
1773	Regulating Act	First step to regulate the East India Company
1858	Government of India Act	Rule passes from Company to the **Crown**
1909	Morley–Minto Reforms	Separate electorates for Muslims
1919	Montagu–Chelmsford Reforms	**Dyarchy** in provinces
1927	Simon Commission	All-British; boycotted by Indians

Year	Event	Why it matters
1928	**Nehru Report**	First major Indian attempt to draft a constitution
1935	**Government of India Act**	Provincial autonomy, federal plan; the **biggest source** of our administrative provisions
1942	Cripps Mission	Offer rejected
1946	**Cabinet Mission Plan**	Led to the formation of the Constituent Assembly
1947	Indian Independence Act	Independence on 15 Aug 1947; CA became sovereign

Foreign influences (borrowed features) [Ext]

Country	Feature borrowed
UK	Parliamentary system, rule of law, single citizenship, Cabinet system
USA	Fundamental Rights, judicial review, independent judiciary
Ireland	Directive Principles of State Policy
Canada	Federation with a strong Centre
Australia	Concurrent List
Germany (Weimar)	Emergency provisions
USSR	**Fundamental Duties**; ideal of justice in the Preamble
France	Republic; ideals of **Liberty, Equality, Fraternity**
South Africa	Amendment procedure

- **Memory trick for rights/duties:** *Rights ← USA; Duties ← USSR; Directive principles ← Ireland.*

1.3 The Constituent Assembly

Definition: The body formed to draft the Constitution; it represented India's diverse political and social interests. **[Slides]**

Key facts

- **Formed:** 1946, under the **Cabinet Mission Plan**. **[Slides/Ext]**
- **First meeting: 9 December 1946**. **[Ext]**
- **Initial strength: 389** (296 from British India + 93 from princely states). After **Partition**: **299**. **[Slides/Ext]**
- Members of British India were **indirectly elected** by Provincial Legislative Assemblies (not by adult franchise). **[Ext]**
- **Objectives Resolution:** moved by **Jawaharlal Nehru on 13 Dec 1946**, adopted **22 Jan 1947**. It became the base of the Preamble. **[Ext]**
- **Working method:** committees, detailed debates, proposals discussed, modified and voted on, consensus reached; the **Drafting Committee** converted decisions into draft text. **[Slides]**

Key personalities

Person	Role
Dr. Rajendra Prasad	**President** (permanent chairman) of the Constituent Assembly, elected 11 Dec 1946 **[Slides]**
Sachchidananda Sinha	**Temporary/provisional** President (first day) **[Ext]**
Dr. B. R. Ambedkar	**Chairman of the Drafting Committee [Slides]**
B. N. Rau	**Constitutional Adviser** (prepared the initial draft) **[Ext]**
Jawaharlal Nehru	Moved the Objectives Resolution; major leader **[Slides/Ext]**
Sardar Vallabhbhai Patel	Headed the Advisory Committee on Fundamental Rights and Minorities **[Slides/Ext]**
H. C. Mukherjee	Vice-President of the Assembly **[Ext]**

Drafting Committee: set up on **29 August 1947**; **7 members** (Ambedkar, N. Gopalaswami Ayyangar, Alladi Krishnaswami Ayyar, K. M. Munshi, Syed Mohammad Saadulla, N. Madhava Rau, T. T. Krishnamachari). **[Ext]**

Timeline to memorise

Date	Event
1946	Constituent Assembly formed (first met **9 Dec 1946**)
22 Jan 1947	Objectives Resolution adopted
15 Aug 1947	Independence
29 Aug 1947	**Drafting Committee constituted**
26 Nov 1949	**Constitution adopted** (some articles effective immediately)
24 Jan 1950	Members signed the Constitution
26 Jan 1950	**Constitution came into force** (Republic Day)

- **Why 26 January?** Because on **26 Jan 1930** the Congress had declared *Purna Swaraj*. **[Ext]**

Commonly confused: *Adopted* (26 Nov 1949) ≠ *Came into force* (26 Jan 1950). Also *Constituent Assembly President (Prasad) ≠ Drafting Committee Chairman (Ambedkar)*.

1.4 Philosophical Foundations

The Constitution rests on four values **[Slides]**:

Value	Meaning in simple words	Where it is secured
Justice	Social, economic and political fairness	Fundamental Rights + Directive Principles
Liberty	Freedom of thought, expression, belief, faith, worship	Art 19, 25–28
Equality	Equal status and opportunity; no discrimination on caste, religion, gender	Art 14–18
Fraternity	Brotherhood; dignity of the individual; unity and integrity of the nation	Preamble; Fundamental Duties (Art 51A(e))

- **Trick:** *J-L-E-F* = "Just Little Extra Fun".

1.5 The Preamble

Text (memorise the skeleton)

> **WE, THE PEOPLE OF INDIA**, having solemnly resolved to constitute India into a **SOVEREIGN SOCIALIST SECULAR DEMOCRATIC REPUBLIC** and to secure to all its citizens: **JUSTICE**, social, economic and political; **LIBERTY** of thought, expression, belief, faith and worship; **EQUALITY** of status and of opportunity; and to promote among them all **FRATERNITY** assuring the dignity of the individual and the **unity and integrity** of the Nation; **IN OUR CONSTITUENT ASSEMBLY this twenty-sixth day of November, 1949**, do **HEREBY ADOPT, ENACT AND GIVE TO OURSELVES THIS CONSTITUTION.**

Core ideals [Slides] with corrections [Ext]

Ideal	Meaning
Sovereign	Supreme, independent authority; no external power controls India
Socialist	Welfare state; reduce wealth gaps and exploitation (a *democratic*, mixed-economy socialism, not full nationalisation). **Added 1976**
Secular	State has no official religion and treats all religions equally. **Added 1976** (but secular ideas already in Art 14, 15, 25–28)
Democratic	Government by consent of the governed; universal adult suffrage; accountable institutions
Republic	Head of State is not hereditary (the President is elected indirectly)

Key points

1. **"We, the People"** → ultimate source of authority is the people.
2. **Date of adoption** is stated *inside* the Preamble: 26 Nov 1949.
3. **Amended only once: 42nd Amendment, 1976** added *Socialist, Secular, Integrity*.
4. **Not enforceable in court** (non-justiciable); it guides interpretation. It cannot override specific articles.
5. **Is it part of the Constitution?**

Case	Year	Held
Berubari Union	1960	Preamble is **not** part of the Constitution
Kesavananda Bharati	1973	Preamble **is** part of the Constitution; it can be amended but the **basic structure** cannot be destroyed
LIC of India	1995	Reaffirmed that it is part of the Constitution

- **Trick:** *Berubari = "Barely" in; Kesavananda = "Keeps it in".*

Quick-revision summary: Unit 1

British rule → freedom movement ideas → Cabinet Mission → Constituent Assembly (1946; 389→299) → Prasad (President), Ambedkar (Drafting), Nehru & Patel → Drafting Committee 29 Aug 1947 → adopted 26 Nov 1949 → in force 26 Jan 1950 → Preamble (SSSDR + JLEF) → 42nd Amendment (1976) added Socialist, Secular, Integrity.

PART 2 — UNIT 2 NOTES

2.1 Fundamental Rights (Part III, Articles 12–35)

Definition: Basic rights guaranteed by the Constitution to protect individuals and place **limits on State power**. They are **justiciable** (can be enforced in court). **[Slides/Ext]**

- Borrowed from the **USA (Bill of Rights)**. Original Constitution had **7** FRs; the **Right to Property** (Art 31) was removed by the **44th Amendment (1978)** and is now only a **legal right under Art 300A** (Part XII). So **six** FRs today. **[Ext]**
- **Art 12:** defines "State". **Art 13:** laws inconsistent with FRs are **void**. **[Ext]**

The six Fundamental Rights

#	Right	Articles	Key content
1	**Right to Equality**	14–18	Equality before law; no discrimination; equal opportunity in public jobs; abolition of untouchability and titles
2	**Right to Freedom**	19–22	Six freedoms; protection in criminal cases; life and personal liberty; education; arrest safeguards

#	Right	Articles	Key content
3	**Right against Exploitation**	23–24	No human trafficking, **begar** (forced labour); no child (<14) work in factories/mines/hazardous jobs
4	**Right to Freedom of Religion**	25–28	Freedom to profess, practise, **propagate** religion; manage religious affairs
5	**Cultural & Educational Rights**	29–30	Protect language, script, culture; minorities can set up and run educational institutions
6	**Right to Constitutional Remedies**	32	Move the Supreme Court/High Courts to enforce FRs (writs)

Memory trick: E-F-E-R-C-C → "**E**very **F**ree **E**ager **R**eader **C**hecks **C**ourts" (Equality, Freedom, Exploitation, Religion, Cultural, Constitutional remedies).

Article-by-article cheat sheet [Ext]

Article	Content
14	Equality before law (British idea) + equal protection of laws (American idea); allows *reasonable classification*
15	No discrimination on **religion, race, caste, sex, place of birth** (5 grounds)
16	Equality of opportunity in **public employment**
17	**Abolition of untouchability**
18	**Abolition of titles** (except military/academic)
19(1)	Freedom of: (a) **speech & expression**, (b) assemble **peacefully**, (c) form **associations/unions**, (d) **move freely**, (e) **reside and settle**, (g) practise any **profession/occupation/trade**. (f) *property* deleted in 1978
19(2)	Reasonable restrictions on speech: sovereignty & integrity of India, security of State, friendly relations with foreign States, **public order**, decency/morality, **contempt of court**, **defamation**, incitement to an offence

Article	Content
20	Protection in conviction: **no ex-post-facto law**, **no double jeopardy**, **no self-incrimination**
21	**Life and personal liberty** (widely interpreted: privacy, dignity, livelihood, etc.)
21A	**Right to education, ages 6–14** (86th Amendment, 2002)
22	Protection against arbitrary **arrest and detention**; produce before a magistrate within **24 hours**
23	Prohibits **traffic in human beings** and **begar**
24	No child **below 14** in factories, mines or hazardous work
25	Freedom of conscience; **profess, practise, propagate** religion
26	Freedom to **manage religious affairs**
27	No compulsory **tax** for promoting a religion
28	Religious instruction in educational institutions
29	Protection of language, script and culture of **any section of citizens**
30	Minorities (religious or linguistic) can **establish and administer educational institutions**
32	**Remedies** to enforce FRs; Dr. Ambedkar called it the **"heart and soul"** of the Constitution
33–35	Power to restrict FRs for armed forces; martial law; Parliament's power to give effect

Citizens only vs all persons [Ext]

Only **citizens**	**All persons** (including foreigners)
Art **15, 16, 19, 29, 30**	Art **14, 20, 21, 21A, 22, 23, 24, 25–28** (and 32 to enforce them)

Trick: *"15-16-19-29-30" = citizens only.*

Important ideas and cases

- FRs are **not absolute**: **reasonable restrictions** can be imposed in the interests of society and the State. **[Slides/Ext]**
- During a national Emergency, FRs can be suspended **except Art 20 and Art 21** (44th Amendment). **[Ext]**
- **Kesavananda Bharati (1973):** FRs cannot be destroyed (basic structure). **Maneka Gandhi (1978):** Art 21 needs a procedure that is fair, just and reasonable. **Puttaswamy (2017):** privacy is a Fundamental Right under Art 21. **[Ext]**
- Most FRs operate against the **State**; **Art 15(2), 17, 23, 24** also bind **private** persons. **[Ext]**

Commonly confused: *Fundamental Rights* (justiciable, Part III) vs *Directive Principles* (non-justiciable, Part IV, Ireland) vs *Fundamental Duties* (non-justiciable, Part IVA, USSR).

2.2 Fundamental Duties (Part IVA, Article 51A)

- **Added by the 42nd Amendment (1976)** on the recommendation of the **Swaran Singh Committee**; originally **10**, now **11**. Borrowed from the **USSR**. **[Ext]**
- **11th duty** (parents/guardians to provide education to a child aged **6–14**) added by the **86th Amendment (2002)**. **[Ext]**
- **Non-justiciable**: not directly enforceable by courts, but courts use them to interpret laws. They do **not cancel** Fundamental Rights. **[Ext]**

Art 51A	Duty (simple form)
(a)	Respect the **Constitution, National Flag and National Anthem**
(b)	Cherish the **ideals of the freedom struggle**
(c)	Uphold **sovereignty, unity and integrity**
(d)	**Defend** the country; render national service
(e)	Promote **harmony and brotherhood**; renounce practices demeaning to **women**
(f)	Value and preserve the **rich cultural heritage**
(g)	Protect the **natural environment**; compassion for living creatures
(h)	Develop **scientific temper, humanism**, inquiry and reform

Art 51A	Duty (simple form)
(i)	Safeguard **public property**; abjure violence
(j)	Strive for **excellence**
(k)	**Parents/guardians** provide education to children **6–14** (86th Amendment)

Memory trick: *"CFC-DHP-SSEE"*: **C**onstitution, **F**reedom ideals, **C**ountry's sovereignty, **D**efend, **H**armony, **P**reserve heritage, **S**cientific temper, **S**afeguard property (and violence), **E**nvironment, **E**xcellence (+ education). (Use the table above for exact order.)

Rights vs Duties:

	Fundamental Rights	Fundamental Duties
Part	III	IVA
Source	USA	USSR
Enforceable?	Yes (justiciable)	No (non-justiciable)
Added	Original (1950)	1976 (42nd Amendment)
Nature	Freedoms and protections	Civic responsibilities
Relationship	Complementary: balance freedom with responsible citizenship	

2.3 Citizenship (Part II, Articles 5–11)

Definition: Legal status of a person as a **member of a country**. **[Slides]**

- India has **single citizenship** (only Indian citizenship; no separate State citizenship). Borrowed from the **UK**. **[Slides/Ext]**
- **Parliament** has power to make laws on acquisition and termination of citizenship (**Art 11**); main law: **Citizenship Act, 1955**. **[Slides/Ext]**
- **India does not allow dual citizenship.** An **OCI** (Overseas Citizen of India) card is *not* citizenship and gives no vote. **[Ext]**

Constitutional articles on citizenship at the commencement (26 Jan 1950) [Ext]

Article	Content
5	Citizenship at commencement (domicile + born in India / parent born in India / resident 5 years)
6	Migrants from Pakistan
7	Migrants to Pakistan who returned
8	Persons of Indian origin living abroad
9	**Voluntarily acquiring foreign citizenship → not an Indian citizen**
10	Continuance of citizenship
11	**Parliament's power** to regulate citizenship

Trick: "**5-6-7-8-9-10-11**": 9 = foreign citizenship ends Indian one; 11 = Parliament decides.

Five ways to acquire citizenship (Citizenship Act 1955) [Slides/Ext]

Mode	Meaning	Example
Birth (Sec 3)	Born in India, subject to rules for the date of birth	See table below
Descent (Sec 4)	Born **outside India** to an Indian-citizen parent, subject to conditions (e.g. registration with an Indian consulate)	Child born in the USA to an Indian parent
Registration (Sec 5)	Persons of Indian origin / certain connections apply and are registered (e.g. ordinarily resident for 7 years)	Person of Indian origin living in India
Naturalisation (Sec 6)	**Foreigner** who lives in India for the required period (generally **11 years** in aggregate, with the last 12 months continuous) and meets conditions	Foreigner living legally for the period
Incorporation of territory (Sec 7)	When a territory becomes part of India, the Government specifies who becomes a citizen	Goa, Pondicherry, Sikkim (1975)

Citizenship by birth: the three periods (very important) [Ext]

Born	Condition for citizenship by birth
26 Jan 1950 – 30 June 1987	Born in India → citizen (parents' status irrelevant)
1 July 1987 – 2 Dec 2004	**Either parent** a citizen at the time of birth
3 Dec 2004 onwards	**Both parents** citizens, **or one parent a citizen and the other not an illegal migrant**

- Exceptions: children of foreign diplomats and of enemy aliens are not citizens by birth. **[Ext]**
- **Trick:** *"50-87-04"*: first anyone, then one parent, then one parent + other must not be illegal.
- The **Citizenship (Amendment) Act, 2019** allows reduced residence (**5 years**) for naturalisation for certain religious minorities from Afghanistan, Bangladesh and Pakistan who entered India on or before 31 Dec 2014. **[Ext]**

Loss of citizenship (Citizenship Act 1955) [Ext]

Mode	Meaning
Renunciation (Sec 8)	Voluntarily giving up citizenship
Termination (Sec 9)	Automatically ends on **voluntarily acquiring another country's citizenship**
Deprivation (Sec 10)	Government removes it (e.g. obtained by fraud, disloyalty)

Commonly confused: *Registration* (people with Indian connection) ≠ *Naturalisation* (foreigners with long residence). *Descent* (born abroad, Indian parent) ≠ *Birth* (born in India). *Citizen ≠ resident*; living in India does not make anyone a citizen.

2.4 Constitutional Remedies (Article 32 and Article 226)

- **Right to Constitutional Remedies** lets a person approach the courts when a Fundamental Right is violated. It is itself a Fundamental Right. **[Slides]**
- **Supreme Court** (Art 32) and **High Courts** (Art 226) can issue **writs**. High Courts can issue writs for FRs **and for any other legal right**, so Art 226 is wider. **[Slides/Ext]**

The five writs

Writ	Literal meaning	Purpose	Example
Habeas Corpus	"You may have the body"	Protects against **unlawful detention**; court orders the person be produced	Person illegally detained
Mandamus	"We command"	Orders a **public authority to perform a legal duty**	Official refuses a legal duty
Prohibition	"To forbid"	**Prevents** a lower court/tribunal from **exceeding jurisdiction** (issued *while* proceedings are on)	Tribunal about to hear a case it cannot

Writ	Literal meaning	Purpose	Example
Certiorari	"To be certified"	**Quashes** an order already passed by a lower court/tribunal that acted beyond authority or erred in law (issued *after* the order)	Lower court's order set aside
Quo Warranto	"By what authority"	Questions a person's **legal right to hold a public office**	Someone holds a post without qualifications

Memory tricks:

- **H**abeas = **H**uman freedom (body). **M**andamus = **M**ust do duty. **P**rohibition = **P**revent, **C**ertiorari = **C**ancel. **Q**uo warranto = **Q**ualification to hold office.
- **Prohibition is preventive (before); Certiorari is curative (after).**

Extra points on writs [Ext]

- Habeas corpus can be issued against **public authorities and private persons**.
- Mandamus is **not** issued against the **President or Governors** (for their official acts, Art 361), against private individuals (generally), or to enforce purely discretionary or non-statutory duties.
- Prohibition and Certiorari are issued only against **judicial or quasi-judicial** bodies.
- Quo warranto applies only to a **substantive public office** created by law; **any interested person** can apply.
- Parliament cannot take away Art 32 except in an Emergency (Art 359).

Quick-revision summary: Unit 2

FR (Part III, Art 12–35, USA, justiciable): Equality 14–18, Freedom 19–22, Exploitation 23–24, Religion 25–28, Cultural-Educational 29–30, Remedies 32. **FD (Part IVA, Art 51A, USSR, 42nd Amendment 1976, 11 duties, non-justiciable). Citizenship (Part II, Art 5–11, Act 1955):** Birth, Descent, Registration, Naturalisation, Incorporation; lost by Renunciation, Termination, Deprivation; single citizenship. **Writs:** Habeas Corpus, Mandamus, Prohibition, Certiorari, Quo Warranto.

PART 3 — MCQ QUESTION BANK

Answers are **not** shown here. The complete key with explanations is in **Part 5 (the last section)**. Each question carries 2 marks in the real exam (50 questions × 2 = 100), so you need **20 correct answers** to pass.

UNIT 1: Historical Background, Constituent Assembly, Philosophical Foundations, Preamble (Q1–Q40)

Easy (Q1–Q15)

Q1. The Constitution of India was adopted by the Constituent Assembly on:

- A. 15 August 1947
- B. 26 November 1949
- C. 26 January 1950
- D. 9 December 1946

Q2. Who was the Chairman of the Drafting Committee?

- A. Dr. Rajendra Prasad
- B. Jawaharlal Nehru
- C. Dr. B. R. Ambedkar
- D. Sardar Vallabhbhai Patel

Q3. The permanent President of the Constituent Assembly was:

- A. Dr. Rajendra Prasad
- B. Dr. B. R. Ambedkar
- C. B. N. Rau
- D. Sachchidananda Sinha

Q4. The Constitution of India came into force on:

- A. 26 November 1949
- B. 15 August 1947
- C. 29 August 1947
- D. 26 January 1950

Q5. The original Constitution of India had:

- A. 448 articles, 25 parts and 12 schedules
- B. 395 articles, 22 parts and 8 schedules
- C. 250 articles, 15 parts and 6 schedules
- D. 395 articles, 25 parts and 12 schedules

Q6. Which words were added to the Preamble by the 42nd Amendment (1976)?

- A. Sovereign and Democratic
- B. Justice and Liberty

- C. Socialist, Secular and Integrity
- D. Republic and Fraternity

Q7. After Partition, the strength of the Constituent Assembly was reduced from 389 to:

- A. 299
- B. 250
- C. 543
- D. 350

Q8. The Drafting Committee was constituted on:

- A. 9 December 1946
- B. 26 November 1949
- C. 15 August 1947
- D. 29 August 1947

Q9. Which Preamble value promises "equal status and opportunity" to every citizen?

- A. Liberty
- B. Equality
- C. Justice
- D. Fraternity

Q10. The Preamble begins with the words:

- A. "In the name of God"
- B. "Whereas"
- C. "We, the People of India"
- D. "India, that is Bharat"

Q11. The Objectives Resolution in the Constituent Assembly was moved by:

- A. Jawaharlal Nehru
- B. Dr. B. R. Ambedkar
- C. Sardar Patel
- D. Dr. Rajendra Prasad

Q12. The ideals of Liberty, Equality and Fraternity in the Preamble were inspired by the:

- A. American Revolution
- B. Irish struggle
- C. Russian Revolution
- D. French Revolution

Q13. Approximately how long did the Constituent Assembly take to draft the Constitution?

- A. 1 year 6 months
- B. 2 years 11 months
- C. 5 years
- D. 4 years 2 months

Q14. The term "Republic" in the Preamble means that:

- A. The Head of State is a hereditary monarch
- B. Power rests only with the courts
- C. The Head of State is not hereditary
- D. Parliament need not be elected

Q15. The first meeting of the Constituent Assembly was held on:

- A. 9 December 1946
- B. 22 January 1947
- C. 29 August 1947
- D. 24 January 1950

Medium (Q16–Q30)

Q16. Consider the following statements about the Constituent Assembly:

1. It was constituted in 1946 under the Cabinet Mission Plan.
2. Its members were elected directly by all adult citizens.
3. Its strength was reduced after Partition.
4. Dr. Rajendra Prasad was its President.

Which statements are correct?

- A. 1, 2 and 3 only
- B. 2, 3 and 4 only
- C. 1 and 2 only
- D. 1, 3 and 4 only

Q17. Match the person with the role:

Person	Role
P. Rajendra Prasad	1. Constitutional Adviser

Person	Role
Q. B. N. Rau	2. Temporary (provisional) President of the Assembly
R. B. R. Ambedkar	3. Permanent President of the Assembly
S. Sachchidananda Sinha	4. Chairman, Drafting Committee

- A. P-1, Q-3, R-4, S-2
- B. P-3, Q-1, R-4, S-2
- C. P-3, Q-2, R-4, S-1
- D. P-4, Q-1, R-3, S-2

Q18. Assertion (A): The word "Socialist" in the Preamble means the State must own all means of production. **Reason (R):** Indian socialism aims at reducing inequality and exploitation within a democratic welfare framework.

- A. Both A and R are true, and R explains A
- B. Both A and R are true, but R does not explain A
- C. A is true, but R is false
- D. A is false, but R is true

Q19. In which case did the Supreme Court hold that the Preamble is a part of the Constitution?

- A. Kesavananda Bharati (1973)
- B. Berubari Union (1960)
- C. Golaknath (1967)
- D. A. K. Gopalan (1950)

Q20. Dyarchy in the provinces was introduced by the:

- A. Morley–Minto Reforms, 1909
- B. Montagu–Chelmsford Reforms, 1919
- C. Government of India Act, 1935
- D. Indian Independence Act, 1947

Q21. Many administrative provisions of the Indian Constitution were borrowed from the:

- A. Regulating Act, 1773
- B. Charter Act, 1833
- C. Government of India Act, 1935
- D. Indian Councils Act, 1861

Q22. Which of the following pairs is **incorrectly** matched?

- A. Directive Principles – Ireland
- B. Fundamental Rights – USA
- C. Parliamentary system – Britain
- D. Fundamental Duties – Canada

Q23. Which of the following is **not** mentioned in the Preamble?

- A. Federalism
- B. Secularism
- C. Democracy
- D. Sovereignty

Q24. A State declares one religion as its official religion and gives it special support. Which Preamble ideal is violated?

- A. Sovereignty
- B. Secularism
- C. Republic
- D. Socialism

Q25. Citizens vote every five years to elect their representatives in the Lok Sabha. This reflects which Preamble ideal?

- A. Republic
- B. Sovereignty
- C. Democracy
- D. Socialism

Q26. How many members were there in the Drafting Committee?

- A. 3
- B. 5
- C. 9
- D. 7

Q27. Consider the statements: I. The Preamble begins with "We, the People of India", showing that authority comes from the people. II. The Preamble has been amended only once. III. The Preamble can never be amended.

- A. I and II only
- B. II and III only
- C. I and III only

- D. I, II and III

Q28. Which provisions of the Constitution came into effect on 26 November 1949 itself?

- A. Fundamental Rights
- B. Citizenship, elections and provisional Parliament
- C. Directive Principles
- D. The entire Constitution

Q29. The Advisory Committee on Fundamental Rights and Minorities in the Constituent Assembly was headed by:

- A. Dr. B. R. Ambedkar
- B. Dr. Rajendra Prasad
- C. Sardar Vallabhbhai Patel
- D. B. N. Rau

Q30. Which of these is **not** listed among the liberties in the Preamble?

- A. Thought
- B. Expression
- C. Worship
- D. Movement

Hard (Q31–Q40)

Q31. Assertion (A): The Preamble can be amended. **Reason (R):** In *Kesavananda Bharati*, the Supreme Court held that the Preamble is part of the Constitution, so it can be amended under Art 368 as long as the basic structure is not destroyed.

- A. Both A and R are true, and R explains A
- B. Both A and R are true, but R does not explain A
- C. A is true, but R is false
- D. A is false, but R is true

Q32. Which statement about the Preamble in case law is correct?

- A. *Berubari* held it is part of the Constitution; *Kesavananda* held it is not.
- B. *Berubari* held it is not part of the Constitution; *Kesavananda* held it is.
- C. Both cases held it is not part of the Constitution.
- D. Both cases held it is directly enforceable like a Fundamental Right.

Q33. Consider: I. The 42nd Amendment (1976) added "Socialist", "Secular" and "Integrity". II. The Preamble has been amended only once. III. The Preamble is a source of legislative power. IV. "Sovereign Democratic Republic" was part of the original Preamble.

- A. I and II only
- B. II and III only
- C. I, II and IV only
- D. I, II, III and IV

Q34. Arrange in chronological order: (1) Objectives Resolution adopted; (2) Drafting Committee constituted; (3) Constitution adopted; (4) first meeting of the Constituent Assembly.

- A. 4 → 1 → 2 → 3
- B. 1 → 4 → 2 → 3
- C. 4 → 2 → 1 → 3
- D. 1 → 2 → 4 → 3

Q35. A student says: "The whole Constitution came into force on 26 November 1949 because that is when it was adopted." The most accurate response is:

- A. Correct, because adoption means the Constitution is in force.
- B. Incorrect, the entire Constitution began on 15 August 1947.
- C. Incorrect, certain provisions began on 26 Nov 1949 and the rest on 26 Jan 1950.
- D. Correct, but only for Article 1.

Q36. Which pair is correctly matched?

- A. Cabinet Mission – 1942
- B. Simon Commission – 1946
- C. Cripps Mission – 1919
- D. Nehru Report – 1928

Q37. Assertion (A): The Preamble can be enforced directly in court like a Fundamental Right. **Reason (R):** The Preamble helps in interpreting the Constitution and reflects its philosophy.

- A. Both A and R are true, and R explains A
- B. Both A and R are true, but R does not explain A
- C. A is true, but R is false
- D. A is false, but R is true

Q38. The word "Secular" was added to the Preamble in 1976, yet secularism existed in the original Constitution mainly through:

- A. Articles 25–28 and Article 15
- B. Directive Principles only
- C. Article 368
- D. The Seventh Schedule

Q39. Which feature best supports the description of the Constitution as a "living document"?

- A. Complete unamendability
- B. The amendment power under Art 368 and evolving judicial interpretation
- C. Absence of a Preamble
- D. Fixed and unchangeable Schedules

Q40. Which statement about the composition of the original Constituent Assembly (389) is correct?

- A. Members were elected by universal adult franchise.
- B. 296 seats were for British India (indirectly elected by Provincial Assemblies) and 93 for princely states.
- C. All seats were nominated by the Viceroy.
- D. 389 seats were all for British India.

UNIT 2: Fundamental Rights, Fundamental Duties, Citizenship, Constitutional Remedies (Q41–Q80)

Easy (Q41–Q55)

Q41. How many Fundamental Rights does the Constitution of India currently guarantee?

- A. Six
- B. Seven
- C. Five
- D. Eight

Q42. Fundamental Rights are contained in which Part of the Constitution?

- A. Part II
- B. Part III
- C. Part IV
- D. Part IVA

Q43. The Right to Education for children aged 6–14 is guaranteed under:

- A. Article 19
- B. Article 20
- C. Article 21A
- D. Article 24

Q44. The writ that literally means "you may have the body" is:

- A. Mandamus
- B. Certiorari
- C. Quo Warranto
- D. Habeas Corpus

Q45. Fundamental Duties were added to the Constitution by the:

- A. 42nd Amendment, 1976
- B. 44th Amendment, 1978
- C. 86th Amendment, 2002
- D. 1st Amendment, 1951

Q46. How many Fundamental Duties are there at present?

- A. 10
- B. 11
- C. 12
- D. 9

Q47. Which courts can issue writs to enforce Fundamental Rights?

- A. Only the Supreme Court
- B. Only Parliament
- C. The Supreme Court and the High Courts
- D. Only the President

Q48. India follows the principle of:

- A. Dual citizenship (India and State)
- B. Citizenship only by birth
- C. Triple citizenship
- D. Single citizenship

Q49. The writ of Mandamus is used to:

- A. Order a public authority to perform its legal duty
- B. Produce a detained person before the court

- C. Question the right to hold a public office
- D. Quash an order of a lower court

Q50. Untouchability is abolished by which Article?

- A. Article 14
- B. Article 17
- C. Article 18
- D. Article 21

Q51. Which of the following is **not** a mode of acquiring Indian citizenship under the Citizenship Act, 1955?

- A. Birth
- B. Descent
- C. Purchase of property
- D. Naturalisation

Q52. The Right against Exploitation prohibits employment of children below 14 years in hazardous work under:

- A. Article 19
- B. Article 21
- C. Article 25
- D. Article 24

Q53. Articles 25–28 deal with the:

- A. Right to Freedom of Religion
- B. Right to Equality
- C. Right against Exploitation
- D. Right to Constitutional Remedies

Q54. Dr. Ambedkar described which Article as the "heart and soul" of the Constitution?

- A. Article 14
- B. Article 32
- C. Article 21
- D. Article 51A

Q55. The Fundamental Duty requiring parents/guardians to provide education to children aged 6–14 was added by the:

- A. 42nd Amendment
- B. 44th Amendment

- C. 86th Amendment
- D. 61st Amendment

Medium (Q56–Q70)

Q56. Match the writ with its purpose:

Writ	Purpose
1. Habeas Corpus	a. Stops a lower court from acting beyond its jurisdiction
2. Mandamus	b. Produces a person who is unlawfully detained
3. Prohibition	c. Directs a public authority to perform its legal duty
4. Quo Warranto	d. Challenges the legal right to hold a public office

- A. 1-b, 2-c, 3-a, 4-d
- B. 1-c, 2-b, 3-d, 4-a
- C. 1-a, 2-d, 3-b, 4-c
- D. 1-d, 2-a, 3-c, 4-b

Q57. Which of the following Fundamental Rights is available to foreigners also?

- A. Article 15
- B. Article 21
- C. Article 19
- D. Article 16

Q58. Consider the statements on citizenship:

1. Citizenship is dealt with in Part II (Articles 5–11).
2. Parliament can make laws on citizenship (Article 11).
3. India permits full dual citizenship.
4. The Citizenship Act, 1955 is the main law.

Which are correct?

- A. 1 and 3 only
- B. 2, 3 and 4 only
- C. 1, 2 and 4 only
- D. 1, 2, 3 and 4

Q59. Assertion (A): The freedoms under Article 19 are absolute. **Reason (R):** The State may impose reasonable restrictions on them, for example in the interest of public order.

- A. Both A and R are true, and R explains A
- B. Both A and R are true, but R does not explain A
- C. A is true, but R is false
- D. A is false, but R is true

Q60. Police detain a person for three days without producing him before a magistrate. Which writ is most appropriate?

- A. Habeas Corpus
- B. Mandamus
- C. Quo Warranto
- D. Certiorari

Q61. A person who lacks the required qualification is holding the post of a University Vice-Chancellor (a public office). Which writ can challenge this?

- A. Prohibition
- B. Quo Warranto
- C. Habeas Corpus
- D. Mandamus

Q62. Which of the following is **not** a prohibited ground of discrimination under Article 15(1)?

- A. Religion
- B. Sex
- C. Age
- D. Place of birth

Q63. For a person born in India between 1 July 1987 and 2 December 2004, citizenship by birth requires that:

- A. Both parents were citizens
- B. Neither parent need be a citizen
- C. A grandparent was a citizen
- D. Either parent was an Indian citizen at the time of birth

Q64. Consider the statements on Fundamental Duties:

1. They are non-justiciable.
2. They were added by the 42nd Amendment.

3. They are placed in Part IVA.
4. They can be enforced by writs.

Which are correct?

- A. 1, 2 and 3 only
- B. 1, 2 and 4 only
- C. 2, 3 and 4 only
- D. 1, 2, 3 and 4

Q65. Which Articles cannot be suspended even during a national Emergency?

- A. Articles 14 and 19
- B. Articles 20 and 21
- C. Articles 15 and 16
- D. Articles 25 and 26

Q66. Assertion (A): Article 21 protects life and personal liberty. **Reason (R):** Article 21 is available only to citizens of India.

- A. Both A and R are true, and R explains A
- B. Both A and R are true, but R does not explain A
- C. A is true, but R is false
- D. A is false, but R is true

Q67. Which of the following is **not** guaranteed by Article 19(1) today?

- A. Freedom of speech and expression
- B. Freedom to assemble peacefully
- C. Freedom to practise any profession or trade
- D. Right to acquire, hold and dispose of property

Q68. Article 23 prohibits:

- A. Traffic in human beings and begar
- B. Employment of children in schools
- C. Untouchability
- D. Use of titles

Q69. Which Article gives minorities the right to establish and administer educational institutions?

- A. Article 29
- B. Article 30
- C. Article 28

- D. Article 26

Q70. The three ways of losing Indian citizenship under the Citizenship Act, 1955 are:

- A. Birth, descent and registration
- B. Election, appointment and recall
- C. Renunciation, termination and deprivation
- D. Registration, naturalisation and incorporation

Hard (Q71–Q80)

Q71. Mandamus will generally **not** be issued against:

- A. A municipal corporation
- B. A government department
- C. The President of India for his official acts
- D. A public officer

Q72. Consider: I. Article 32 is itself a Fundamental Right and is available only for Fundamental Rights. II. High Courts under Article 226 can issue writs for Fundamental Rights and for other legal rights. III. Article 226 is a Fundamental Right.

- A. I and II only
- B. II and III only
- C. I and III only
- D. I, II and III

Q73. A child is born in India in 2008. Who is a citizen by birth?

- A. Both parents are illegal migrants
- B. One parent is an Indian citizen and the other is a lawful foreign national
- C. One parent is an Indian citizen and the other is an illegal migrant
- D. Both parents are lawful foreign nationals

Q74. Assertion (A): India does not permit dual citizenship. **Reason (R):** Under Article 9 and Section 9 of the Citizenship Act, a person who voluntarily acquires another country's citizenship ceases to be an Indian citizen.

- A. Both A and R are true, and R explains A
- B. Both A and R are true, but R does not explain A
- C. A is true, but R is false
- D. A is false, but R is true

Q75. Which of the following is **not** a ground on which the State may restrict freedom of speech under Article 19(2)?

- A. Security of the State
- B. Contempt of court
- C. Defamation
- D. Criticism of the Government's economic policy

Q76. Consider Article 14: I. It applies to all persons. II. "Equality before law" is derived from the British idea of the rule of law. III. "Equal protection of the laws" is derived from the US Constitution. IV. It permits reasonable classification.

- A. I and II only
- B. II and III only
- C. I, II and III only
- D. I, II, III and IV

Q77. A person is acquitted of an offence by a court and is then prosecuted again for the same offence. Which constitutional protection is violated?

- A. Article 14
- B. Article 20(2)
- C. Article 22
- D. Article 24

Q78. Which pair is correctly matched?

- A. Article 15 – Equal opportunity in public employment
- B. Article 23 – Prohibition of child employment in hazardous work
- C. Article 22 – Abolition of titles
- D. Article 17 – Abolition of untouchability

Q79. Which statement about Fundamental Duties is correct?

- A. They are enforceable by writs like Fundamental Rights.
- B. They are non-justiciable civic obligations and do not cancel Fundamental Rights.
- C. They were part of the original Constitution of 1950.
- D. They apply only to government officials.

Q80. Under the Third Schedule of the Citizenship Act, 1955, the general residence requirement (in aggregate) for naturalisation is:

- A. 11 years
- B. 5 years

- C. 7 years
- D. 2 years

PART 4 — FINAL REVISION

(This part sits before the answer key so that the key is the very last section, as requested. Use it after you have attempted the questions.)

4.1 The 30 Most Important Facts to Memorise

1. Constitution **adopted 26 Nov 1949**; **in force 26 Jan 1950**.
2. Drafting took about **2 years 11 months** (17 or 18 days, depending on the book).
3. Original: **395 articles, 22 parts, 8 schedules**; today about **448 articles, 25 parts, 12 schedules**.
4. Constituent Assembly formed **1946** under the **Cabinet Mission Plan**; first met **9 Dec 1946**.
5. Strength **389 → 299** after Partition (296 British India + 93 princely states originally).
6. **Dr. Rajendra Prasad** = President of the Assembly; **Dr. B. R. Ambedkar** = Chairman, Drafting Committee; **B. N. Rau** = Constitutional Adviser.
7. **Drafting Committee: 29 Aug 1947, 7 members.**
8. **Objectives Resolution:** moved by **Nehru** (13 Dec 1946), adopted 22 Jan 1947.
9. Preamble keywords: **Sovereign, Socialist, Secular, Democratic, Republic**; objectives: **Justice, Liberty, Equality, Fraternity**.
10. **42nd Amendment (1976)** added **Socialist, Secular, Integrity** to the Preamble (the only amendment to it).
11. Preamble is **non-justiciable**; **part of the Constitution** per *Kesavananda Bharati* (1973); *Berubari* (1960) said it was not.
12. Liberty, Equality, Fraternity ← **France**; Fundamental Rights ← **USA**; DPSP ← **Ireland**; Fundamental Duties ← **USSR**; Parliamentary system ← **UK**.
13. Government of India Act **1935** is the biggest source of administrative provisions.
14. Fundamental Rights: **Part III, Articles 12–35**; **six** rights today.
15. **Right to Property** removed as FR by **44th Amendment (1978)**; now Art **300A** (legal right).
16. **Art 14** equality before law; **Art 15** no discrimination (religion, race, caste, sex, place of birth); **Art 16** public jobs; **Art 17** untouchability; **Art 18** titles.
17. **Art 19(1)** six freedoms (speech, assembly, associations, movement, residence, profession); restrictions in **19(2)**.

18. **Art 20** (no ex-post-facto, double jeopardy, self-incrimination), **Art 21** (life and liberty), **Art 21A** (education 6–14), **Art 22** (arrest safeguards, 24 hours).
19. **Art 23** human trafficking/begar; **Art 24** children under 14 in hazardous work.
20. **Art 25–28** religion; **Art 29–30** cultural and educational rights (30 = minorities' institutions).
21. **Art 32** = Constitutional Remedies (SC); **Art 226** = High Courts; Ambedkar: Art 32 is the "heart and soul".
22. Citizens only: **Art 15, 16, 19, 29, 30**. All persons: **14, 20, 21, 21A, 22, 23, 24, 25–28**.
23. **Arts 20 and 21** cannot be suspended during Emergency.
24. **Fundamental Duties: Part IVA, Art 51A**, **42nd Amendment 1976**, **11** duties (11th by **86th Amendment 2002**), non-justiciable.
25. **Citizenship:** Part II, Art **5–11**; **Parliament** decides (Art 11); **Citizenship Act 1955**; **single citizenship**; no dual citizenship.
26. **Five modes of acquiring:** Birth, Descent, Registration, Naturalisation, Incorporation of territory.
27. **Three modes of losing:** Renunciation, Termination, Deprivation. Voluntary foreign citizenship → **termination** (Art 9 / Sec 9).
28. **Birth rules:** before 1 July 1987 = born in India; 1 July 1987–2 Dec 2004 = either parent citizen; from 3 Dec 2004 = both parents citizens or one citizen + other not an illegal migrant.
29. **Five writs:** Habeas Corpus (body), Mandamus (command), Prohibition (forbid; before), Certiorari (quash; after), Quo Warranto (by what authority).
30. **Naturalisation:** generally **11 years** residence; Registration: typically **7 years** for persons of Indian origin.

4.2 Important Articles and Dates Table

Article / Date	What it is
9 Dec 1946	First meeting of Constituent Assembly
13 Dec 1946 / 22 Jan 1947	Objectives Resolution moved / adopted
15 Aug 1947	Independence
29 Aug 1947	Drafting Committee constituted
26 Nov 1949	Constitution adopted (Art 394 provisions in force)
24 Jan 1950	Members signed

Article / Date	What it is
26 Jan 1950	Constitution in force
1976 (42nd Am.)	Fundamental Duties; Socialist, Secular, Integrity
1978 (44th Am.)	Property no longer FR; Arts 20, 21 non-suspendable
2002 (86th Am.)	Art 21A; 11th duty
Art 5–11	Citizenship
Art 12–13	State; laws void if against FRs
Art 14–18	Right to Equality
Art 19–22	Right to Freedom
Art 23–24	Right against Exploitation
Art 25–28	Freedom of Religion
Art 29–30	Cultural & Educational Rights
Art 32	Constitutional Remedies (SC)
Art 226	High Court writ power
Art 51A	Fundamental Duties
Art 300A	Right to property (legal right)
Art 368	Amendment power
Citizenship Act 1955	Main citizenship law

4.3 Common Exam Traps and Confusing Distinctions

Trap	Correct picture
Adopted vs in force	26 Nov 1949 vs 26 Jan 1950
Prasad vs Ambedkar	Prasad = Assembly President; Ambedkar = Drafting Committee Chairman
Sinha vs Prasad	Sinha = temporary first-day chair; Prasad = permanent
389 vs 299	Original vs after Partition
"Socialist/Secular" original?	**No** – added 1976

Trap	Correct picture
Preamble enforceable?	**No**, but part of the Constitution
Rights vs Duties source	USA vs USSR
Duties justiciable?	**No**
Number of FRs	**6** now (7 originally)
Art 29 only for minorities?	**No** – any section of citizens; Art 30 is for minorities
FRs only for citizens?	**No** – many apply to all persons
Prohibition vs Certiorari	Prevent (before) vs quash (after)
Habeas vs Quo warranto	Detention vs public office
Mandamus against President?	**No** (official acts)
Registration vs Naturalisation	Indian origin/connection vs foreigner with long residence
Descent vs Birth	Born abroad to Indian parent vs born in India
Dual citizenship	**Not allowed**; OCI is not citizenship
Art 32 vs 226	SC (FRs only) vs HC (FRs + other legal rights)
Right to property	Not an FR since 1978; Art 300A
Number of FDs	10 (1976) → 11 (2002)

4.4 Rapid-Revision Sheet

Unit 1 in one minute

History: 1858 Crown rule → 1909 → 1919 dyarchy → 1928 Nehru Report → **1935 Act** → 1946 **Cabinet Mission**. **Assembly:** 9 Dec 1946 first meeting; 389→299; Prasad (President), Ambedkar (Drafting), Rau (Adviser), Nehru (Objectives), Patel (Advisory Committee on FR). **Dates:** 29 Aug 1947 Drafting Committee → 26 Nov 1949 adopted → 26 Jan 1950 in force. **Values:** Justice, Liberty, Equality, Fraternity (JLEF). **Preamble:** SSSDR; 42nd Amendment 1976; non-justiciable; part of Constitution (*Kesavananda*).

Unit 2 in one minute

FR (Part III): 14–18 Equality | 19–22 Freedom | 23–24 Exploitation | 25–28 Religion | 29–30 Cultural-Educational | 32 Remedies. **FD (Part IVA, 51A):** 42nd Am. 1976; 11 duties; non-justiciable; USSR. **Citizenship (Part II, Art 5–11):** single; Parliament (Art 11); 1955 Act; acquire = Birth, Descent, Registration, Naturalisation, Incorporation; lose = Renunciation, Termination, Deprivation; birth rule 1950 / 1987 / 2004. **Writs: H**abeas (detention) · **M**andamus (duty) · **P**rohibition (prevent) · **C**ertiorari (cancel) · **Q**uo Warranto (office).

Exam-day strategy for a 40/100 pass mark

- You need **20 of 50** correct. Secure the **easy factual** questions first (dates, names, article numbers, writs); these alone can pass you.
- For **assertion–reason**: first decide if each statement is true; only then check whether R explains A.
- For **statement questions**: look for words like *only*, *always*, *never*, *absolute*; they usually make a statement false.
- If unsure, **eliminate** options; there is usually no negative marking mentioned, but confirm with your professor.

PART 5 — ANSWER KEY WITH EXPLANATIONS

Attempt all questions first. Then check here and read the explanation for every question you missed.

Unit 1 (Q1–Q40)

Q	Ans	Explanation
1	**B**	Adopted on 26 Nov 1949; 26 Jan 1950 is when it came into force.
2	**C**	Ambedkar chaired the Drafting Committee; Prasad presided over the Assembly.
3	**A**	Prasad was the permanent President; Sinha was only the temporary chairman on day one.
4	**D**	In force from 26 Jan 1950 (Republic Day).

Q	Ans	Explanation
5	**B**	Original: 395 articles, 22 parts, 8 schedules. Option A is today's approximate figure.
6	**C**	42nd Amendment (1976) added Socialist, Secular and Integrity.
7	**A**	389 fell to 299 after Partition.
8	**D**	Drafting Committee constituted 29 Aug 1947.
9	**B**	"Equality of status and of opportunity."
10	**C**	"We, the People of India" shows that authority comes from the people.
11	**A**	Nehru moved the Objectives Resolution (13 Dec 1946).
12	**D**	Liberty, Equality, Fraternity come from the French Revolution (justice ideal from the Russian one).
13	**B**	About 2 years 11 months (17/18 days).
14	**C**	A republic has a non-hereditary Head of State.
15	**A**	First met 9 Dec 1946.
16	**D**	Statement 2 is false: members were indirectly elected by Provincial Assemblies (and from princely states), not by adult franchise.
17	**B**	Prasad = permanent President (3); Rau = Constitutional Adviser (1); Ambedkar = Drafting (4); Sinha = temporary President (2).
18	**D**	A is false: Indian socialism is democratic and welfare-oriented, not full state ownership. R is true.
19	**A**	*Kesavananda Bharati* (1973) held the Preamble is part of the Constitution; *Berubari* (1960) held otherwise.
20	**B**	Dyarchy came with the 1919 Montagu–Chelmsford Reforms.
21	**C**	The 1935 Act is the main source of administrative provisions.

Q	Ans	Explanation
22	**D**	Fundamental Duties came from the USSR, not Canada (Canada: federation with strong Centre).
23	**A**	The word "federal" does not appear in the Preamble.
24	**B**	An official, preferred religion goes against secularism.
25	**C**	Citizens electing representatives = democracy.
26	**D**	Seven members.
27	**A**	I and II are true. III is false: the Preamble can be amended (as in 1976), only not so as to destroy the basic structure.
28	**B**	Provisions on citizenship, elections, provisional Parliament etc. took effect on 26 Nov 1949 (Art 394).
29	**C**	Patel headed the Advisory Committee on Fundamental Rights, Minorities.
30	**D**	The Preamble lists thought, expression, belief, faith and worship; movement is in Art 19.
31	**A**	Both true; because the Preamble is part of the Constitution (*Kesavananda*), it can be amended under Art 368.
32	**B**	*Berubari* (1960): not part; *Kesavananda* (1973): part.
33	**C**	I, II and IV true. III false: the Preamble is not a source of legislative power.
34	**A**	First meeting (9 Dec 1946) → Objectives Resolution (22 Jan 1947) → Drafting Committee (29 Aug 1947) → adoption (26 Nov 1949).
35	**C**	Only some articles began on 26 Nov 1949; the rest on 26 Jan 1950.
36	**D**	Nehru Report = 1928. Cabinet Mission = 1946; Simon = 1927; Cripps = 1942.
37	**D**	A is false (Preamble is non-justiciable); R is true.

Q	Ans	Explanation
38	**A**	Arts 25–28 (religious freedom) and Art 15 already reflected secularism.
39	**B**	Art 368 amendments plus judicial interpretation allow it to evolve.
40	**B**	296 British India seats (indirectly elected) + 93 princely states = 389.

Unit 2 (Q41–Q80)

Q	Ans	Explanation
41	**A**	Six (property removed in 1978).
42	**B**	Part III (Arts 12–35).
43	**C**	Art 21A, added by the 86th Amendment (2002).
44	**D**	Habeas Corpus = "you may have the body".
45	**A**	42nd Amendment (1976).
46	**B**	Eleven (11th added in 2002).
47	**C**	Supreme Court (Art 32) and High Courts (Art 226).
48	**D**	Single Indian citizenship; no State citizenship.
49	**A**	Mandamus = "we command" a public authority to do its legal duty.
50	**B**	Art 17 abolishes untouchability.
51	**C**	Citizenship Act modes: birth, descent, registration, naturalisation, incorporation of territory. Property purchase is not one.
52	**D**	Art 24 bans child (<14) work in hazardous employment.
53	**A**	Arts 25–28 = Freedom of Religion.
54	**B**	Ambedkar called Art 32 the heart and soul.
55	**C**	86th Amendment (2002) inserted duty (k).

Q	Ans	Explanation
56	**A**	Habeas = produce detained person (b); Mandamus = duty (c); Prohibition = stop jurisdictional excess (a); Quo Warranto = right to office (d).
57	**B**	Art 21 applies to all persons. Arts 15, 16, 19 are for citizens only.
58	**C**	Statement 3 is false: India does not permit full dual citizenship.
59	**D**	A is false (Art 19 freedoms are subject to reasonable restrictions); R is true.
60	**A**	Unlawful detention and violation of the 24-hour rule (Art 22) → Habeas Corpus.
61	**B**	Quo Warranto questions the legal right to hold a public office.
62	**C**	Art 15(1) grounds: religion, race, caste, sex, place of birth. Age is not listed.
63	**D**	For 1 July 1987–2 Dec 2004, either parent must be an Indian citizen at the time of birth.
64	**A**	They are non-justiciable (statement 4 is false).
65	**B**	The 44th Amendment protects Arts 20 and 21 from suspension in an Emergency.
66	**C**	A is true; R is false because Art 21 covers all persons.
67	**D**	The right to property was deleted from Art 19 in 1978.
68	**A**	Art 23: human trafficking and begar. Child labour is Art 24.
69	**B**	Art 30.
70	**C**	Sections 8–10: renunciation, termination, deprivation.
71	**C**	Mandamus is not issued against the President or Governor for official acts (Art 361).
72	**A**	I and II true. III false: Art 226 is a constitutional power, not a Fundamental Right.

Q	Ans	Explanation
73	**B**	After 3 Dec 2004: one Indian parent plus the other not an illegal migrant (lawful foreigner is acceptable).
74	**A**	Both true; Art 9 / Sec 9 terminate citizenship on voluntary foreign citizenship, which is why dual citizenship is not allowed.
75	**D**	Criticism of economic policy is not a listed ground in Art 19(2).
76	**D**	All four statements are correct.
77	**B**	Art 20(2): protection against double jeopardy.
78	**D**	Art 17 = untouchability. Art 15 is non-discrimination (16 = public jobs); Art 23 = trafficking (24 = children); Art 22 = arrest (18 = titles).
79	**B**	Duties are non-justiciable, added in 1976, and apply to citizens; they do not cancel rights.
80	**A**	General naturalisation requirement: 11 years in aggregate (CAA 2019 reduced it to 5 years for specified groups).

Self-assessment

Score (out of 80)	Meaning
64+ (80%)	Excellent, exam-ready
48–63 (60–79%)	Good; revise the traps in Part 4.3
32–47 (40–59%)	Passing zone; re-read notes for the topics you missed
Below 32	Revise Parts 1–2 thoroughly, then retry